

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
SELAH BROWN, IMANUEL STENNETT, JAHFREE
STENNETT, JASON JOHN, TYRONE MULDROW, JR.,
and TYRONE BROWN,

Plaintiffs,

-against-

**AMENDED
COMPLAINT**

11 CV 2277 (BMC)

Jury Trial Demanded

CITY OF NEW YORK, ANDREW FAGO, ANDREW HILLERY,
ROBERT HANSON, BRENDAN O'BRIEN, GERARD
DELPRETE, PATRICK FLAHERTY, MATTHEW FRIED,
LAWRENCE COGNATO, JENNIFER CHILDS, and JOHN and
JANE DOE 1 through 10, individually and in their official
capacities, (the names John and Jane Doe being fictitious,
as the true names are presently unknown),

Defendants.

-----X
Plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON
JOHN, TYRONE MULDROW, JR., and TYRONE BROWN, by their attorneys, Leventhal &
Klein, LLP, complaining of the defendants, respectfully allege as follows:

Preliminary Statement

1. Plaintiffs bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983, and 1988 for violations of their civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiffs also assert supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff SELAH BROWN is a twenty-two year old African American man presently residing in Staten Island, New York.

7. Plaintiff IMANUEL STENNETT is a twenty-seven year old African American man presently residing in Staten Island, New York.

8. Plaintiff JAHFREE STENNETT is a twenty-five year old African American man presently residing in Staten Island, New York.

9. Plaintiff JASON JOHN is a twenty-three year old African American man presently residing in Staten Island, New York.

10. Plaintiff TYRONE MULDROW, JR. is a twenty-five year old African American man presently residing in Staten Island, New York.

11. Plaintiff TYRONE BROWN is a twenty-five year old African American man presently residing in Staten Island, New York.

12. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

13. Defendant CITY OF NEW YORK maintains the New York City Police

Department (hereinafter referred to as “NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

14. That at all times hereinafter mentioned, the individually named defendants ANDREW FAGO, ANDREW HILLERY, ROBERT HANSON, BRENDAN O’BRIEN, GERARD DELPRETE, PATRICK FLAHERTY, MATTHEW FRIED, LAWRENCE COGNATO, JENNIFER CHILDS, and JOHN and JANE Doe 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

15. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the CITY OF NEW YORK.

16. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

17. On April 20, 2010, beginning at approximately 9:30 pm, the defendant NYPD police officers participated in the execution of a search warrant at 389 Skyline Drive, a private home located in Staten Island, New York, and entered said location with their guns drawn.

18. Plaintiffs SELAH BROWN, IMANUEL STENNETT, and JAHFREE STENNETT were present in the location as it is their home.

19. Plaintiffs JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN

were guests of the plaintiffs SELAH BROWN, IMANUEL STENNETT, and JAHFREE STENNETT.

20. All plaintiffs were lawfully present in said location.

21. Upon entering said location, defendant officers approached plaintiffs SELAH BROWN, JASON JOHN, and TYRONE BROWN in the living room.

22. Defendant officers grabbed plaintiff JOHN and threw him, causing him to land on a lap top computer and sustain a cut on his chest. Said plaintiffs were ordered to lay on the floor with their hands behind their backs. Defendant officers pointed a gun at defendant TYRONE BROWN's head and handcuffed all three plaintiffs.

23. Defendants approached plaintiff JAHFREE STENNETT in his upstairs bedroom.

24. The defendants ordered plaintiff JAHFREE STENNETT to get on the floor and place his hands behind his back. When plaintiff STENNETT complied, the defendants handcuffed and escorted him to the living room.

25. Defendants approached plaintiff IMANUEL STENNETT at the top of a stairwell leading from his basement bedroom.

26. The defendants ordered plaintiff IMANUEL STENNETT to get on the floor and held a gun to plaintiff's STENNETT'S head. When plaintiff STENNETT complied with defendants' order, the defendants handcuffed and escorted him to the living room.

27. Defendants approached plaintiff TYRONE MULDROW in the rear yard.

28. Defendant officers grabbed plaintiff MULDROW, threw him to the ground, elbowed him in the back of the head and kned him in the ribs. Defendants then placed over tight handcuffs on plaintiff MULDROW'S wrists.

29. The defendants escorted plaintiff MULDROW to the living room and repeatedly

ignored his requests to loosen his handcuffs.

30. The defendant officers searched plaintiffs and the location.

31. The defendants did not recover any contraband from plaintiffs.

32. Notwithstanding the defendants' lack of probable cause to believe that the plaintiffs had committed any crime, the defendants placed plaintiffs into a police van where they remained handcuffed and imprisoned for approximately one hour.

33. The defendants transported plaintiffs to an NYPD police precinct and imprisoned plaintiffs therein.

34. Plaintiffs remained imprisoned by the defendants until the plaintiffs were released on their own recognizance following their arraignments in Richmond County Criminal Court, said charges having been filed against the plaintiffs based on the false allegations of defendants FAGO and HILLERY that they were purportedly in possession of drugs. The defendants initiated said prosecution with malice, and otherwise caused said prosecution to be commenced against plaintiffs for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: to cover up the above mentioned abuse of authority.

35. As a result of the defendants false statements the Richmond County District Attorney filed charges against plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN under Richmond County Supreme Court Docket Nos. 2010RI003747 through 2010RI003752.

36. On June 21, 2010 the false charges levied against the plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN were dismissed and sealed.

37. Upon information and belief, defendants ANDREW FAGO, ANDREW

HILLERY, ROBERT HANSON, BRENDAN O'BRIEN, GERARD DELPRETE, PATRICK FLAHERTY, MATTHEW FRIED, LAWRENCE COGNATO, JENNIFER CHILDS, and JOHN and JANE Doe 1 through 10, participated in and/or otherwise failed to intervene in the illegal conduct described herein.

38. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the CITY OF NEW YORK, including, without limitation, the inadequate screening, hiring, retaining, training and supervising its employees, and due to discrimination against plaintiff due to their race and/or nationality.

39. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affair Bureau, and the CITY OF NEW YORK's Civilian Complaint Review Board) that many NYPD officers, including the defendants, are insufficiently trained regarding: the search of an individual's residence; the investigation of incidents; the execution of search warrants, and the treatment of innocent and/or uninvolved individuals found at the location of the execution of a search warrant.

40. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

41. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY OF NEW YORK has retained these officers, and failed to adequately train and

supervise them.

42. As a result of the foregoing, plaintiffs sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of their constitutional rights.

Federal Claims

**AS AND FOR A FIRST CAUSE OF ACTION
(Deprivation of Rights Under 42 U.S.C. §§ 1981 and 1983)**

43. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs “1” through “42” with the same force and effect as if fully set forth herein.

44. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

45. All of the aforementioned acts deprived plaintiffs, members of a racial minority, of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §§ 1981 and 1983.

46. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto, and with the intent to discriminate on the basis of race.

47. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

48. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective

municipality/authority, which is forbidden by the Constitution of the United States.

49. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)

50. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "49" with the same force and effect as if fully set forth herein.

51. Defendants arrested plaintiffs without probable cause, causing them to be detained against their will for an extended period of time and/or subjected to physical restraints.

52. Defendants caused plaintiffs to be falsely arrested and unlawfully imprisoned.

53. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Malicious Abuse of Process under 42 U.S.C. § 1983)

54. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "53" with the same force and effect as if fully set forth herein.

55. Defendants maliciously issued criminal process against plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE

MULDROW, JR., and TYRONE BROWN by causing them to be arraigned and prosecuted in Criminal Court.

56. Defendants caused plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up their abuse of authority.

57. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Malicious Prosecution under 42 U.S.C. § 1983)

58. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "57" with the same force and effect as if fully set forth herein.

59. Defendants initiated, commenced and continued a malicious prosecution against plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN.

60. Defendants caused SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN, to be prosecuted without any probable cause until the charges were dismissed on June 21, 2010.

61. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and

TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)

62. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "61" with the same force and effect as if fully set forth herein.

63. The level of force employed by defendants was excessive, objectively unreasonable and otherwise in violation of plaintiffs JOHN and MULDROW'S constitutional rights.

64. As a result of the aforementioned conduct of defendants, plaintiffs JOHN and MULDROW were subjected to excessive force and sustained physical and emotional injuries.

65. As a result of the foregoing, plaintiffs JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

66. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "65" with the same force and effect as if fully set forth herein.

67. The defendants falsely arrested plaintiffs, and subjected plaintiffs JOHN and MULDROW to excessive force, because of the plaintiffs' national origin, and/or race, or otherwise failed to intervene to prevent such treatment committed in their presence by other NYPD officers.

68. As a result of the foregoing, plaintiffs were deprived of their rights under the Equal Protection Clause of the United States Constitution.

69. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

70. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "69" with the same force and effect as if fully set forth herein.

71. The defendants conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

72. As a result of the foregoing, plaintiffs were deprived of their liberty and right to substantive due process, causing emotional and physical injuries.

73. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

74. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “73” with the same force and effect as if fully set forth herein.

75. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

76. The defendants failed to intervene to prevent the unlawful conduct described herein.

77. As a result of the foregoing, plaintiffs’ liberty was restricted for an extended period of time, they were put in fear of their safety, they were humiliated and plaintiffs JOHN and MULDROW were subjected to excessive force.

78. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

79. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “78” with the same force and effect as if fully set forth herein.

80. The supervisory defendants personally caused plaintiffs’ constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

81. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL

STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

82. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "81" with the same force and effect as if fully set forth herein.

83. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

84. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to: arresting individuals without probable cause merely based on their presence at the location of the execution of a search warrant. In addition, the CITY OF NEW YORK engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its employees that were the moving force behind the violation of plaintiffs' rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

85. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective

municipality/authority, which is forbidden by the Constitution of the United States.

86. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiffs.

87. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

88. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiffs were unlawfully arrested and plaintiffs JOHN and MULDROW were subjected to excessive force.

89. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiffs constitutional rights.

90. All of the foregoing acts by defendants deprived plaintiffs of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false arrest/unlawful imprisonment;
- C. To be free from malicious abuse of process;
- D. To be free from malicious prosecution;
- E. To be free from excessive force;
- F. To be free from the failure to intervene;
- G. To receive equal protection under law.

91. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and

TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

Supplemental State Law Claims

92. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "91" with the same force and effect as if fully set forth herein.

93. Within ninety (90) days after the claim herein accrued, plaintiffs duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

94. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

95. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

96. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York)

97. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "96" with the same force and effect as if fully set forth herein.

98. Defendants arrested plaintiffs without probable cause.

99. Plaintiffs were detained against their will for an extended period of time and subjected to physical restraints.

100. As a result of the aforementioned conduct, plaintiffs were unlawfully imprisoned in violation of the laws of the State of New York.

101. As a result of the aforementioned conduct, plaintiffs suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

102. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Assault under the laws of the State of New York)

103. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "102" with the same force and effect as if fully set forth herein.

104. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN were placed in apprehension of imminent harmful and offensive bodily contact.

105. As a result of defendant's conduct, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN have suffered mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

106. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL

STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Battery under the laws of the State of New York)

107. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "106" with the same force and effect as if fully set forth herein.

108. Defendants made offensive contact with plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN without privilege or consent.

109. As a result of defendants' conduct, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN have suffered mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

110. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Malicious Prosecution under the laws of the State of New York)

111. Plaintiffs repeat, reiterate and reallege each and every allegation contained in

paragraphs numbered “1” through “110” with the same force and effect as if fully set forth herein.

112. Defendants initiated, commenced, and continued malicious prosecutions against plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN.

113. Defendants caused SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN to be prosecuted without probable cause until the charges were dismissed on or about June 21, 2010.

114. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress under the laws of the State of New York)

115. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1 through “114” with the same force and effect as if fully set forth herein.

116. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

117. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

118. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

119. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiffs.

120. As a result of the aforementioned conduct, plaintiffs suffered emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

121. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

122. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraph numbered "1" through "121" with the same force and effect as if fully set forth herein.

123. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the arrest of plaintiffs and in the excessive use of force against plaintiffs JOHN and MULDROW.

124. Defendant CITY OF NEW YORK knew, or should have know in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

125. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and

TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York)

126. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "125" with the same force and effect as if fully set forth herein.

127. Upon information and belief the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest of plaintiffs and in the excessive use of force against plaintiffs JOHN and MULDROW.

128. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION
(Negligence under the laws of the State of New York)

129. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "128" with the same force and effect as if fully set forth herein.

130. Plaintiffs' injuries herein were caused by the carelessness, recklessness and negligence of the defendant CITY OF NEW YORK and its employees and agents, who were on

duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

131. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A NINETEENTH CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York)

132. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "131" with the same force and effect as if fully set forth herein.

133. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

134. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTIETH CAUSE OF ACTION
(Violation of NYS Constitution Article 1 §11)

135. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "134" with the same force and effect as if fully set forth

herein.

136. As a result of defendants' conduct, plaintiffs were deprived of their right to equal protection of laws.

137. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION
(Violation of NYS Constitution Article 1 §12)

138. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "137" with the same force and effect as if fully set forth herein.

139. As a result of defendants' conduct, plaintiffs were deprived of their right to security against unreasonable searches, seizures, and interceptions.

140. As a result of the foregoing, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

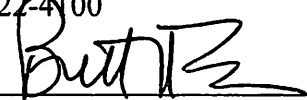
WHEREFORE, plaintiffs SELAH BROWN, IMANUEL STENNETT, JAHFREE STENNETT, JASON JOHN, TYRONE MULDROW, JR., and TYRONE BROWN demand judgment and pray for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages in an amount to be determined by a jury;
- (C) reasonable attorney's fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
July 20, 2011

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(718) 722-4100

By:


BRETT H. KLEIN (BK4744)

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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SELAH BROWN, IMANUEL STENNETT, JAHFREE
STENNETT, JASON JOHN, TYRONE MULDROW, JR.,
and TYRONE BROWN,

Plaintiffs,

11 CV 2277 (BMC)

-against-

CITY OF NEW YORK, ANDREW FAGO, ANDREW HILLERY,
ROBERT HANSON, BRENDAN O'BRIEN, GERARD
DELPRETE, PATRICK FLAHERTY, MATTHEW FRIED,
LAWRENCE COGNATO, JENNIFER CHILDS, and JOHN and
JANE DOE 1 through 10, individually and in their official
capacities, (the names John and Jane Doe being fictitious,
as the true names are presently unknown),

Defendants.

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AMENDED COMPLAINT

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